

INDEPENDENT REPORT FOLLOWING INVESTIGATION INTO ALLEGATIONS OF BULLYING/HARASSMENT AGAINST MR. RUPERT LOWE MP

1. I have been asked by the Reform Party to look into allegations made by two employees who worked, respectively, in the Parliamentary office of Mr. Lowe MP (hereinafter Mr. Lowe) or within Mr. Lowe's constituency office.
2. I need to establish that I am affiliated with no political party whatsoever and I have approached this investigation with no preconceptions nor bias whatsoever. I am well aware that there has been a good deal of information and opinion writing that has reached the Press and social media.

Timeline and Allegations

3. This report arises out of complaints that emanated initially directly from [REDACTED] to Mr. Lowe on **18th December 2024** about bullying and unacceptable conduct from a particular individual in the constituency office. She also formally made her complaint to the Parliamentary Independent Complaints and Grievance Scheme (ICGS), initially contacting this scheme on the **17th January 2025** and then submitting a formal complaint on the **28th January 2025**.
4. It is also correct to record that [REDACTED] complaints were made directly in respect of the conduct of Mr. Lowe toward her as well as that of his staff; whilst [REDACTED] had made direct complaint against the constituency (male) staff but indirectly against Mr. Lowe.
5. [REDACTED] reached out to the Party Chairman by email on the **27th February 2025**, generally setting out her grievances.
6. [REDACTED] had made a formal complaint to ICGS on the **2nd February 2025** and she, too, contacted the Party Chairman by email, to complain about bullying on the **27th February 2025**.
7. Following the emails from the two women sent the **27th February 2025** which had clearly raised complaints of bullying by Mr. Lowe and by those in his constituency office that on the **28th February 2025**, the Party wrote directly to Mr. Lowe requesting his cooperation in an independent investigation. By this letter, he was informed that the Party had received evidence of bullying, discriminatory behaviour, misuse of disciplinary procedures and concerns about the behaviour towards female staff. It is right to point out that the Party had been sent both the formal complaint from [REDACTED] to ICGS and certain WhatsApp messages that had been written by Mr. Lowe's constituency manager about [REDACTED].

8. The complaints had been raised by both women **prior** to any disciplinary procedures set in motion by Mr. Lowe against each of them. [REDACTED] had, as stated, made an informal complaint to Mr. Lowe as early as **December 2024** and a formal complaint to him on the **14th January 2025**; whilst [REDACTED] had lodged her complaint on the **4th February 2025** as set out above.
9. [REDACTED] disciplinary hearing (described as a Probationary hearing) took place on the **28th January 2025**.
10. Any suggestion from Mr. Lowe, as he has made in the media, that these women complained following the instigation of disciplinary proceedings against either of them is incorrect and in the case of [REDACTED], demonstrably so.
11. Both women complained of considerable stress and suffering following details of alleged sustained bullying and discriminatory conduct and they each raised concerning issues of the impact upon their health and wellbeing.
12. I was approached and asked to look into these matters by the Reform Party on the **3rd March 2025**.

Method of Investigation

13. I was provided with some documents which included [REDACTED] and [REDACTED] initiating complaints to the Party Chair; the formal complaint made by [REDACTED] to the ICGS and copies of WhatsApp messages that had passed from Mr. Jonathan Wedon, Mr. Lowe's Constituency Manager.
14. The Reform Party provided me with no specific instructions or remit and requested that I devise my own. When Mr. Lowe requested to know what was my remit for this enquiry and from whom it had emanated, I made clear to him, in a lengthy email sent by me directly to him, that I was given no remit nor instructions save to look into these allegations of bullying and harassment by him and those who answered to him from his constituency office. I then set out in clear terms what I had determined the remit to be:

In general terms this was:

"The purpose of my instruction is to do no more than have a helpful and confidential look at the allegations; assess their veracity and in any event, even if there is no aftermath to these present allegations, to see whether any recommendations can be made to ensure the good standing of the Party and avoid the possibility of any repetition of such allegations which, apart from anything else, take up time and effort and distract from the real work needed to be done by both Members' of Parliament and their

subordinates. It is, as I understand it, an ‘investigation’ which is intended to be thorough but also helpful for the governance of the Party. It is not intended to supervene nor interfere with any ongoing investigation through Parliament but an entirely proper but informal internal ‘look’ at the situation. As I understand it, there are to be no legal ramifications arising from this investigation and assessment.”

More specifically I stated:

“My assessment requires a careful collation of all the evidence and allegations to determine

- 1. Generally whether there was/is any conduct that occurred that could be characterised as, or could have been construed as, a culture of bullying/harassment encouraged or tolerated within the hierarchy of the Party emanating from Mr. Lowe and impacting upon his constituency of which Mr. Wedon was his Chairman; alternatively whether the allegations are simply not made out and what has been characterised as bullying/harassment has been failures or misconduct on the part of the employees who have responded badly to justified criticism of their work;*

and

- 2. Specifically whether any of the allegations are or could be made out, given the wide remit of the Equality Act 2010*

and

- 3. Any consequences of my assessment.*

and

- 4. Recommendations to avoid any such allegations being made for the future if at all possible.”*

15. This email followed an originating email both to Mr. Lowe and to Mr. Jonathan Wedon. In that email I had explained carefully my independence and lack of any political connection to the Reform (or indeed any other) political party. To date Mr. Wedon has failed entirely to respond in any way to my request for him to engage in this process.

16. I did have a number of exchanges and conversations with Mr. Lowe - one of which led to some misunderstanding about what was said by me and which had to be corrected by me in a public statement. I make clear that this affects this report in no way at all.

17. Additionally, there was a good deal of public pronouncements which seemed to shed rather more heat than light on my job and which, where these pertain to

events and/or incidents which are unconnected with the specificity of this report, I have ignored.

18. I informed Mr. Lowe, on more than one occasion, that I was proposing to first 'interrogate' the complaints by taking careful and full statements from each woman which he would then be able to see and respond to.
19. I reached out to each woman and arranged telephonic interviews with each of them. From Monday 10th March 2025, I embarked upon the exercise of bespeaking the information that I required. I spoke at length with the two complainants; [REDACTED] and [REDACTED] on entirely separate days and occasions as arranged between us. Based upon what I had been told, I then prepared full statements on behalf of each of these women. This was an exercise carried out by me over a period of several days and each of these women was interviewed by me entirely separately from the other and neither was informed by me as to the contents of the other's statements nor has either of them seen, to date, the finished statements of the other. I made clear to each that these statements were to be their statements, and my job was merely to encapsulate in a comprehensive manner what I was being told.
20. To achieve thoroughness and accuracy, [REDACTED] and [REDACTED] were requested by me to scrutinise the draft statements and to make corrections or amendments where I may have misstated or misunderstood what I had been told. I emphasised to each the importance of accuracy especially since, although this is not a statement for any extant litigation, I proposed to have each sign her statement endorsed with a Statement of Truth, a device that has been employed for some time in court proceedings instead of a sworn affidavit but carrying the same serious impact as if the same was indeed supported by an oath. After some back and forth between myself and the women in question, each completed the requisite signing and supplied me with supporting material which form the appendix to each completed statement.
21. Indeed, changes and corrections were made by each and in their own language and words and these changes were incorporated.
22. This exercise took some 4 days to complete and was so completed by Thursday 13th March 2025. On the following day, 14th March I sent the completed and signed statements, respective appendices to the solicitors now appointed by Mr. Lowe, namely Mr. Jason Newall of Irwin Mitchell together with a list of questions arising out of the material in the statements to assist, I hoped, Mr. Lowe to provide me with an equally considered and full response, setting out his position in answer to the allegations.

23. Mr. Newall and I had engaged directly prior to the supply of the material in a professional, courteous and polite exchange and he helpfully confirmed that all the material had been received by him on the Friday although I apprehended that it was unlikely that he would be able to action this material with his client until the following Monday.
24. Unfortunately, I have now been informed by Mr. Newall, by email dated 21st March 2025, that his client, Mr. Lowe, has declined to formally respond to the complaints as set forth in the statements nor will he address the questions. By this email, I was informed that Mr. Lowe wants to delay any engagement with this investigation due to the complication of a further issue arising out of an alleged assault incident which seems to have involved the Police.
25. In turn, I have informed Mr. Newall that my clear instructions are to press on with this private and informal report for the Party as I had set out in my email (see above) and that I could see no nexus between allegations of bullying/harassment by employees and any alleged criminal and potentially formal proceeding that might involve the authorities. Any delay as suggested was quite unacceptable. Mr. Lowe had had more time than had been taken by me to produce the material setting out the complaints and I could see no reason why he could not formally respond.
26. Moreover, and somewhat unfortunately, Mr. Lowe made a statement on social media the day before I received the email from Mr. Newall giving the apparent reasons for Mr. Lowe not to presently engage with my review; this message made the unequivocal statement that
- “I will not be engaging with the Reform ‘investigation’ into blatantly vexatious complaints made by former employees who both admitted serious offences and were going through the disciplinary process regarding this misconduct before any of their ‘issues’ were raised. There is no credible evidence of any ‘bullying’ by anybody, because there was none. This has been weaponised in a desperate attempt to smear my name”*
27. I have quoted in full from this message as it provides for me the clear and unequivocal denials on the part of Mr. Lowe which I have to take into account as well as his assertion that the complaints were raised only in response to disciplinary issues involving both of these women. This message is entirely consistent with Mr. Lowe’s stance from the very start of this process and in fairness to him, I have to give such weight to his consistent position as is due. Obviously, it would have been far preferable for me to have had a clear witness statement from him signed with a ‘statement of truth’ under penalty of perjury as I have received from [REDACTED] and [REDACTED].

28. Regrettably and as seen above in the timeline section, the statement put out by Mr. Lowe also misstates the facts so far as the assertion that the disciplinary proceedings **preceded** the complaints - most clearly so far as [REDACTED] is concerned. It is also clear from the evidence that the messages being sent by Jonathan Wedon concerning [REDACTED] which comprise part of her complaint and upon which she relies, were being sent and disseminated far earlier than any disciplinary process had begun.
29. I would have been assisted by statements from Mr. Wedon and, indeed, from an Alistair Harrison who features in both complaints and sits in the unusual position of being an 'independent contractor' of Mr. Lowe's who was understood to be responsible for Mr. Lowe's social media but played, as it turned out, a larger part in this matter.
30. Doing the best that I can, I will now get to the matter by reference to the witness evidence of both women; Mr. Lowe's stated position as expressed publicly (as well as to me personally); and then a look at the law.

The Evidence

31. As stated, each of the women have provided me with clear and detailed accounts of their respective complaints. Both made complaints to the ICGS of which I have first seen that of [REDACTED]. I latterly received the complaint of [REDACTED], which entirely aligns with what she had informed me was the substance of that complaint.
32. I start with the description of these two women. They are both highly qualified, young women - each holding Bachelors' and Masters' degrees from Russell Group universities.
33. [REDACTED] entered the political arena permanently following her degree and had a remarkably successful career for no less than 14 years, in Parliament, having worked for two Ministers' of State in the Conservative Party and another Member of Parliament from which job she went to work for Mr. Lowe in his Parliamentary Office. She had succeeded in becoming a Senior Parliamentary Secretary and Office Manager before she began working for Mr. Lowe. She acquired her position with Mr. Lowe after high recommendations from her former employer, amongst others.
34. [REDACTED] was employed as a case worker in the Constituency Office after holding responsible and indeed vital positions for a software company and then for the Norfolk Fire and Rescue Service. She was 'headhunted' for the constituency job at Mr. Lowe's Great Yarmouth Constituency.

35. Each of these women lasted a mere few months in their respective jobs and [REDACTED] resigned 'before the inevitable' sacking as she describes, whilst [REDACTED] was sacked.
36. [REDACTED] sets out her full grievances in her statement attached and I need not go into the detail. It is sufficient for me to summarise that she states that she was subject to constant criticism meted out unpleasantly and harshly by the said Harrison who she began to feel she could not please in any way whatsoever. She felt that every step she took, every case that she dealt with was subject to complaint from Harrison. Indeed, she cites that Jonathan Wedon, with whom she was on friendly terms was also very irritated and irked by Harrison's arrogation of complete control over constituency matters. This barrage of criticism, which was so alien to her earlier experiences over many years in Parliament doing similar work began to have a deleterious impact upon her. When she raised her concerns to Mr. Lowe before Christmas 2024, he was merely dismissive of these.
37. In mid-January, she approached Mr Lowe again for a frank and concerned discussion about the impact upon her that Harrison was having. To her surprise, distress and disappointment, she was, she claimed, met with hostility and disdain. In fact, Mr. Lowe, she says, simply made clear that Harrison was '*his man*' and if she didn't like it, she could '*make other arrangements*' especially as she had been put into '*the black corner*' by Harrison and he '*was not afraid to get rid of anyone*'. A further attempt to engage with Harrison and his assistant, Jason Porter, to clear the air was met with rudeness and aggression and the said Porter told her that '*no-one had time for this*'.
38. In the Parliamentary office, Mr. Lowe's approach was that she was 'frozen' out; refusing to engage with her or have her accompany him to a meeting that was part of her job.
39. On Mr. Lowe's side, he raises the disciplinary matters against [REDACTED] which I have been able to consider. These comprise the drafting of employment contracts which had been completed some 5 months earlier by [REDACTED]. The complaint seems to be that [REDACTED] contract allowed for a 3-month probation period whilst the contracts for both Porter and one, Kateryna Harrison (wife of Alistair Harrison) allowed for 6 months. This may have been an error and a genuine mistake given that [REDACTED] contract was drafted some weeks apart from the others. Frankly, even if it was an intended differentiation, this might well have been considered entirely reasonable, looked at objectively given that [REDACTED] had years of prior experience, and the others had none at all.
40. Nevertheless, this was categorized by Mr. Lowe as [REDACTED] being 'deceitful', which she denied and found very hurtful indeed. Moreover, the issue of these

contracts was first raised **after** her complaints about Harrison and not, as suggested by Mr. Lowe, before her complaints suggesting, as he does, that she only raised the complaints of bullying conduct because of this contract issue.

41. It is worth noting that, despite the allegations against [REDACTED] of being deceitful, it was Mr. Lowe who had the ultimate responsibility for and did sign off on all of the contracts.
42. The second area of alleged misconduct appears to be that [REDACTED] accessed Mr. Lowe's private email account and that in doing so, on the 27th January 2025, she exchanged information about [REDACTED] on several calls with Mr. Wedon. A number of points are made by [REDACTED] about this issue:
- (i) That [REDACTED] considered it part of her job to monitor all of Mr. Lowe's email accounts;
 - (ii) If she was not supposed to be accessing this particular account - how did she obtain the access information to the account - it could only have been from Mr. Lowe himself who, it must be assumed, gave her the password and log-in details;
 - (iii) The WhatsApp message of that day, appended to her statement show that only one call passed between herself and Mr. Wedon - not the 3 or 4 as claimed by Mr. Lowe and it is [REDACTED] contention that the information about [REDACTED] came from Mr. Wedon and not vice versa.
43. I have to consider a) the veracity of the complaints set against Mr. Lowe's unverified responses but also whether the way it arose even warranted disciplinary process anyway and b) whether the way the entire interaction between herself, Harrison and Mr. Lowe amounted to harassment.
44. It is right to record that [REDACTED] attended her GP on more than one occasion but declined to be 'signed off' for health reasons until she was eventually so signed off by her doctor for stress related symptoms which, she asserts, have severely impacted upon her confidence and sense of self.
45. [REDACTED] is in a slightly different position. She only worked at the constituency office and her essential complaint is that she was treated quite differently and discriminatorily from others (like Liam Porter or indeed Wedon himself). In her case and after the continual complaints, matters came to a head when she had been criticised for not accessing earlier case information for guidance and ensuring that a 'new' complaint did not already have a file. When, however, she did exactly that and found that an earlier case had involved her own family, she was criticized for data breach. The earlier case was closed by the time that she accessed it and by way of contrast, Mr. Wedon had openly discussed a case accessed by him which had involved her own neighbours.

46. [REDACTED] found herself, she says, under constant pressure and criticism. Like [REDACTED] she felt that she could do nothing right. This criticism came from both Alistair Harrison and Jonathan Wedon. [REDACTED] had a sense of inconsistency in respect of what was being levelled against her as opposed to conduct tolerated and accepted in others in the office.
47. For Mr. Lowe, it must be acknowledged that at the disciplinary hearing attended by himself and HR, [REDACTED] appeared to be accepting responsibility for accessing the former case file, but she explains that in her statement and says that she felt compelled to '*fall on her sword*' because she had factually accessed the material and she hoped that by accepting responsibility, she could start with a clean slate and keep her job. In her statement she considers that she was deliberately maneuvered into her admissions.
48. Importantly whether this 'breach' even amounted to a disciplinary matter in the context set out, should have something about which Mr. Lowe could have taken a view.
49. I am unimpressed by any HR presence at the hearing as it is fairly common knowledge that the HR department in any institutional setting is there for the institution and not for the employees.
50. In the case of [REDACTED], another issue arises. She has been furnished with what can only be described as unacceptable remarks made about her from the very inception of her job. These were made by way of WhatsApp messages from Jonathan Wedon to [REDACTED] who has been the source of providing these messages. Mr. Wedon made pejorative, derogatory and offensive comments about [REDACTED] describing her as 'weird', even referencing autism and wanting to 'shake her off'. The texts are all annexed to [REDACTED] statement, and they do not make for comfortable reading.
51. Mr. Lowe's response to me was that he (very properly) deplored these messages once he had seen them, but he could not see how he could be responsible for what his constituency manager had done without his knowledge. I will explore that response when I come to look at the legal position but there are two further comments that need to be made in respect of [REDACTED] and her effective claim of discriminatory conduct against her:
- (i) the first is that Mr. Lowe has been asked by me in writing and as one of my questions submitted to his solicitor, whether, once he did know of these texts, whether he took disciplinary action against Mr. Wedon for his admittedly (by Mr. Lowe) unacceptable conduct in the workplace against a subordinate?

I have received no response to this and whilst I do not wish to second guess any fact, nothing was said to me by Mr. Lowe about his taking such action against Mr. Wedon in contrast to the speed with which he acted against both [REDACTED] and [REDACTED]. I rather suspect that no formal disciplinary steps whatsoever have been taken against Mr. Wedon; nothing has been suggested by Mr. Lowe in his many statements to the media that he has accepted that these texts were put out and that he has consequently taken the appropriate action against his constituency manager in respect of unacceptable behaviour; indeed I do not recall him, in any of his posts, referencing this conduct on the part of his constituency manager toward and in respect of a junior female employee.

- (ii) the second is that Liam Porter, I am told, represented Mr. Lowe at a Parliamentary function at which he became embarrassingly drunk and incapable. He did not face any disciplinary action for this conduct.

52. Finally, and almost in passing, it is to be noted that [REDACTED] informed Wedon that she suffered from dyspraxia and further she had also suffered a family bereavement when she lost her brother in tragic circumstances and was helping her obviously distraught mother. The dyspraxia is a protected characteristic under the provision of the Equality Act 2010.

53. I need to add, as can be seen below, that if this discrimination was being meted out to both of these women in contradistinction to the men working in the office, then that too could amount to breaches of the 2010 Act.

The Law

54. I say at once whilst employment law does not now form any large part of my specialist practice I do have experience in the field and I have been able to do the necessary research and fully take on board the up to date and relevant provisions of the Equality Act 2010. This is not with a view to advising on whether either of these women would be able to bring a case in the employment tribunal but to determine whether the acts complained of, even taking account their own alleged conduct, could amount to harassment under this Act.

55. An employer is liable for acts of discrimination, harassment and victimisation carried out by its employees in the course of employment: *‘anything done by a person (A) in the course of A’s employment must be treated as also done by the employer’* – s. 109(1) of the Equality Act 2010. It matters not whether that thing is done with the employer’s knowledge or approval. But an employer has a defence, under s. 109(4), where it can show that it took all reasonable steps to prevent the employee from carrying out the act of discrimination. A recent and

important decision of the Employment Appeals' Tribunal (cited below @para 61) looked at the scope of this defence.

56. When considering an employer's defence that it took 'all reasonable steps' to prevent an employee discriminating against another employee, it is legitimate to consider how effective the steps that have been taken were likely to be when they were taken and how effective they have proved to be in practice.
57. First is the issue of who is the 'employer'. Mr. Lowe has suggested to me that he is not the employer of either [REDACTED] or [REDACTED] because they are contracted to and paid for by Parliament. It is likely, however, that he would indeed be regarded as the employer since both of these women's jobs depended entirely upon his tenure in Parliament- if he lost his seat, their jobs do not survive that loss as seen by [REDACTED] earlier experiences. He is likely to be found responsible for acts carried out under his authority and in respect of staff behaviour for other staff members.
58. It needs to be said that the threshold for finding unfair or discriminatory treatment of an employee under Section 26 of the Act is very low. If the bullying conduct can be related to the sex or any disability suffered by an employee - this would likely amount to harassment.
59. Mr. Lowe has to be responsible for setting the 'tone' in his office and constituency office and thus he is responsible for the acts of both Wedon and Harrison towards [REDACTED] and [REDACTED] as well looking at his own conduct towards [REDACTED].
60. In my questions to Mr. Lowe, I asked him as to his familiarity with the Parliamentary codes that are explicit about bullying in the workplace. I understand that, as a new MP, he would have attended such a seminar about these matters. Unfortunately, he has declined to address this topic at all.
61. In the recent case in the Employment Appeal Tribunal (*Allay (UK) Ltd v Gehlen* (2021) it was found that when looking at the reasonableness of the steps an employer has taken, merely asking whether there has been training is not enough – it is the nature of that training and its likely effectiveness which is important.

Conclusions

62. Going back to my own 'remit' and drawing the facts together from both sides as well as the law, I can conclude as follows:
- (i) There is veracity in the complaints from both women which amounts 'credible evidence' - to use Mr. Lowe's own words and these complaints

of victimisation; constant criticisms; discriminatory behaviour do seem to amount to harassment on the part of both Mr. Lowe and his constituency team - especially Mr. Wedon and Mr. Harrison.

Mr. Lowe seems to have failed or been unwilling to address the very real concerns of his own Parliamentary Secretary as well as failing to address the alleged toxic conduct of both Wedon and Harrison when this became known to him. Moreover, he seems to have failed to understand that it was his duty and responsibility to ensure systems were in place to avoid junior members of staff being treated in any unfair and discriminatory way.

The 'failures' on the part of the women that have been highlighted by Mr. Lowe and resulted in disciplinary procedures being taken against them seem flimsy in the extreme and would have been unlikely, in my opinion, to have warranted disciplinary action much less dismissal. They have the appearance of a defensive stance taken once the complaints had been made as the timings support.

At the very least Mr. Lowe should have taken seriously the distress and concerns of a seasoned Parliamentary employee and of both women. If he felt that either did fall short of what was expected of them by him or his senior staff, then a careful and full meeting to discuss by way of appraisal what may have gone wrong and how it could be improved could have been undertaken before immediate disciplinary action was sought. This contrasts with a failure to take action or indeed investigate complaints against two men in the constituency office (Wedon and Porter) and against Mr. Harrison who formed part of this team.

- (ii) I have indicated in my discussion of the law above that I am of the view that there is real risk that the acts complained of, if made out, could well give rise to breaches of the Equality Act 2010.
- (iii) The consequences will be a matter for the women to take such advice and action as they consider fit but a factor in this is the allegation by [REDACTED] of threat(s) made by or on behalf of Mr. Lowe to take action himself against her if she cooperated with the investigation, which, at the least and if true, are both unhelpful and unedifying. I take on board that he has denied that such threats have been made.
- (iv) Going forward I would advise the Party hierarchy to be quite strict about ensuring that each member of the Party is fully acquainted with the rules of Parliament as regards bullying and the provisions of the 2010 Act given, I repeat, it is a really low threshold to be crossed to be able to bring such

a claim against a member. The Party wants to avoid any such unpleasantness - not just due to the risk of legal action but also out of common decency and respect for another person who is doing his/her best to do a good job.

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